

26STCV07943 26STCV07943

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 26STCV07943 Hearing Date: September 18, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 20

Hearing Date: Friday,

September 18, 2026

Case Name: Johnson

v. Montraveta, et al.

Case No.: 26STCV07943

Motion: Motion

to Disqualify

Moving Party: Plaintiff Patrick Johnson, pro per

Responding Party: Unopposed

Notice: OK

Ruling: The

motion to disqualify attorney Jim Blucker, Jim Palmer, and the Law Office of

James M. Blucker is MOOT.

If counsel

do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pandemic.

BACKGROUND

Plaintiff Patrick

Johnson alleges residing in a certain unspecified property within Los Angeles County. On February 3, 2023, a \$1,499,999 deed of trust was executed against the unidentified property, which led to a notice of default. A non-judicial foreclosure sale occurred on October 1, 2024, which led to the purchase of the property by Wilmington Savings. The property was subsequently listed for sale, but Plaintiff appears to claim a right to occupation.

On March 12, 2026,
Plaintiff in pro per filed a complaint for Quiet Title, Cancellation of Instrument, Declaratory Relief, and Injunctive Relief.

On August 24,
2026, counsel substituted into the case for Plaintiff.

On September 11,
2026, the court denied the order to consolidate the subject case with the unlawful detainer action pending under 26STUD04545.

DISCUSSION

APPLICABLE LAW

“Motions to disqualify counsel present competing policy considerations. On the one hand, a court must not hesitate to disqualify an attorney when it is satisfactorily established that he or she wrongfully acquired an unfair advantage that undermines the integrity of the judicial process and will have a continuing effect on the proceedings before the court. On the other hand, it must be kept in mind that disqualification usually imposes a substantial hardship on the disqualified attorney's innocent client, who must bear the monetary and other costs of finding a replacement...” (Gregori v. Bank of America (1989) 207 Cal.App.3d 291, 300; see Oaks Management Corporation v. Superior Court (2006) 145 Cal.App.4th 453, 467.)

“[D]isqualification is proper as a prophylactic measure to prevent future prejudice to the opposing party from information the attorney should not have possessed”; an affirmative showing of existing injury from the misuse of privileged information is not required. (Citation.) A trial court, however, may not order disqualification “simply to punish a dereliction that will likely have no substantial continuing effect on future judicial proceedings.”” (McDermott Will & Emery LLP v. Superior Court (2017) 10 Cal.App.5th 1083, 1120.)

In ruling on a motion for disqualification, the court must first determine the existence of any (former) attorney client relationship or even the transmission of confidential information thereby prejudicing the now adverse party. (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (1999) 20 Cal.4th 1135, 1148 [“An attorney represents a client—for purposes of a conflict of interest analysis—when the attorney knowingly obtains material confidential information from the client and renders legal advice or services as a result”]; Jessen v. Hartford Casualty Ins. Co. (2003) 111 Cal.App.4th 698, 709 [“We agree that the question whether an attorney should be disqualified in a successive representation case turns on two variables: (1) the relationship between the legal problem involved in the former representation and the legal problem involved in the current representation, and (2) the relationship between the attorney and the former client with respect to the legal problem involved in the former representation”].)

APPLICATION TO FACTS

Plaintiff moves to disqualify attorney James Blucher and affiliates on grounds of a conflict of interest, due to representation of Defendant Wilmington Savings, while also appearing as a defendant in the subject action.

On September 11, 2026, Plaintiff (via new counsel) filed a request for dismissal, with prejudice, as to James M. Brucker.

While the dismissal was entered, Plaintiff left the motion on calendar. Given the

dismissal of attorney Brucker, the court finds any alleged conflict with Brucker as both a defendant and representative counsel for Wilmington Savings is now decoupled. The motion to disqualify is therefore MOOT.

CONCLUSION

Plaintiff Patrick

Johnson's unopposed motion to disqualify is MOOT and taken off-calendar.

Plaintiff to give
notice.